



UNITED STATES MARINE CORPS
MARINE CORPS INSTALLATIONS NATIONAL CAPITAL REGION
MARINE CORPS BASE QUANTICO
3250 CATLIN AVENUE
QUANTICO VIRGINIA 22134 5001

FAR Subpart 8.4 Limited Sources Justification

MEMORANDUM TO THE FILE

Subj: FAR SUBPART 8.4 LIMITED SOURCES JUSTIFICATION

I. BACKGROUND:

- A. FAR 8.405-6 states that orders placed, or BPAs established under Federal Supply Schedules are exempt from the requirements in FAR Part 6. However, an ordering activity must justify its action when restricting consideration. This memorandum documents the justification for limiting sources, in accordance with FAR 8.405-6(c).
- B. This acquisition is conducted under the authority of the Multiple-Award Schedule Program (see FAR 8.401).

II. IDENTIFICATION OF THE AGENCY AND CONTRACTING ACTIVITY:

This acquisition is being conducted by the Department of the Navy, under the Headquarters Marine Corps, Installation and Logistics (HQMC, I&L) Head of the Contracting Activity (HCA). The executing contracting office is Marine Corps Installations National Capital Region - Regional Contracting Office (MCINCR-RCO), 2010 Henderson Road, MCB Quantico, VA 22134-5000.

III. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Civilian Workforce Management Branch has a requirement for nineteen (19) user CYBERFEDS Licenses on the Web Subscription with one (1) Worker's Compensation Subscription. The Civilian Workforce Management Branch requires these CYBERFEDS subscriptions to access case laws, arbitration awards, statutes, regulations, decisions (i.e. Federal Sector, court, Private sector), forms for Human Resource Programs (i.e. Employee Relations, Staffing, and Classification, Recruitment/Retention, Succession Planning, Pay and Benefits, Training, and Workforce Development), and Equal Employment Opportunities (EEO), Diversity, and Labor Relation decisions in support of the United States Marine Corps' mission and readiness.

The intent of this action is to issue a Sole Source order under the GSA Schedule Contract No.

47QTCA20D002P, LRP Publications, Inc. per sole source letter from Debbie Jacker, Contract Renewal Specialist 26 February 2025.

The required delivery/performance start date is 01 April 2025. This requirement is for one (1) base period and four (4) option periods.

The total estimated value of this requirement is \$XXX base year plus four (4) option years. Marine Corps Operations and Maintenance (O&M) appropriations will be used to fund this requirement as outlined in the table below.

	FY25	Total
O&M		

IV. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING THE ESTIMATED VALUE):

Civilian Workforce Management Branch (CWMB) has a sole source follow-on requirement for nineteen (19) user CYBERFEDS Licenses on the Web Subscription with one (1) Worker's Compensation Subscription. (Base Period and four (4) option periods) CyberFEDS on the Web (LRP Publications, Inc.) is the sole source of the unique combination of case decisions, statutes, manuals and guides, pay tables, bulletins and news groups. These research and analytical tools comprise CyberFEDS on the Web: Quick Start Guides (QSGs), which provide overviews of more than 350 EEO, Employee Relations, Labor Relations, Classification and Staffing topics and links to noteworthy cases, statutes, regulations and additional resources. This service is used throughout the Federal Government by multiple agencies, including HQMC, AR Division. Some of the key benefits for the CWMB includes:

- 1) **Efficiency in Decision-Making:** CyberFEDS streamlines access to essential legal and regulatory information, enabling quicker and more informed decision making.
- 2) **Compliance Support:** It helps ensure that the CWMB remains compliant with federal employment laws and regulations, reducing the risk of legal issues.
- 3) **Training and Development:** The platform includes eLearning courses and resources that support the professional development of Marine Corps personnel.
- 4) **Time-Saving Tools:** Quick Start Guides and searchable databases, CyberFEDS saves time by consolidating information in one place.
- 5) **Expert Insights:** It provides analysis and guidance from recognized experts in federal employment law, which can be invaluable for handling complex workplace challenges.

This requirement provides for the following:

Manufacturer	Mfr Part No.	Name and Description	Qty
LRP Publication, Inc.	4100.CMPL	CyberFEDS Web Subscription Annual Renewal	19
LRP Publication, Inc	4100.WC	Workers Compensation on CYBERFEDS	1

Manufacturer: LRP Publications, Inc.

Manufacturer POC and Phone Number: Phyllis Rubin, 800-515-4577 ext.6334

Manufacturer Address: 747 Dresher Road, P.O. Box 980, Horsham, PA 19044-0980

Manufacturer's Dealer/Representative: Debbie Jacker, 703-784-9639

Manufacturer's Dealer/Representative Address: P.O. Box 24668, West Palm Beach, FL 33416

V. THE DETERMINATION TO LIMIT SOURCES IS BASED ON THE FOLLOWING AUTHORITY AND SUPPORTING RATIONALE (*select all that apply*):

- A. ***AN URGENT AND COMPELLING NEED EXISTS, AND FOLLOWING THE PROCEDURES IN FAR 8.405-2 OR 8.405-3 WOULD RESULT IN UNACCEPTABLE DELAYS (FAR 8.405-6(a)(1)(i)(A)):***

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. Market research:

B. X ONLY ONE SOURCE IS CAPABLE OF PROVIDING THE SUPPLIES OR SERVICES REQUIRED AT THE LEVEL OF QUALITY REQUIRED BECAUSE THE SUPPLIES OR SERVICES ARE UNIQUE OR HIGHLY SPECIALIZED (FAR 8.405-6(a)(1)(i)(B)) (select all that apply):

1. X RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required. CyberFEDS Web Subscriptions are proprietary and copyrighted databases of LRP Publications, Inc., the sole provider and copyright holder of CyberFEDS Web Subscriptions. The company has no authorized resellers or providers.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. X OTHER REASONS.

Authority Permitting Limiting Sources:

Pursuant to FAR subpart 8.405-6(a)(1)(i)(B), only one source is capable of providing the supplies at the level of quality required because the supplies are unique or highly specialized. The LexisNexis software is proprietary; therefore, no other vendor can provide the installation, implementation services, training, maintenance and/or help desk support. The LexisNexis software along with the accompanying IT Professional Services and Training is essential to the Government's requirements, and market research indicates other companies' similar products do not meet, or cannot be modified to meet, the agency's needs.

In addition, this document meets the regulatory authority to execute the justification and approval addressed at FAR 13.5.

Rationale Justifying Use of Cited Authority:

This justification has been prepared in accordance with FAR 8.405-6(a)(1)(i)(B), only one source is capable of providing the supplies and services required at the level of quality required because the supplies or services are unique or highly specialized. The CyberFEDS software is proprietary; therefore, no other vendor can provide the installation, implementation services, training, maintenance and/or help desk support. The CyberFEDS subscriptions is essential to the Government's requirements, and market research indicates other companies' similar products do not meet, or cannot be modified to meet, the agency's needs.

Civilian Workforce Management Branch (CWMB) has a sole source follow-on requirement for nineteen (19) user CYBERFEDS Licenses on the Web Subscription with one (1) Worker's Compensation Subscription.

The requested CyberFEDS subscriptions meets all of the essential requirements of the Civilian Workforce Management Branch and is fully capable to provide the level of support that is necessary to meet the government's needs. The government uses CyberFEDS for several reasons, given its extensive capabilities and the unique needs of the government operations in the realm of government law and human resource management:

- 1) **Exclusive Legal Resources:** CyberFEDS provides access to authoritative guides like Broida's and Hadley's, which are essential for navigating federal employment law. These resources are not available elsewhere in such a comprehensive and searchable format.
- 2) **Quick Start Guides (QSGs):** These guides offer concise overviews of over 350 topics related to federal employment, linking directly to relevant cases, statutes, and regulations. This feature is particularly useful for government agencies dealing with complex legal and regulatory frameworks.
- 3) **Compliance and Best Practices:** CyberFEDS helps federal agencies, including the USMC, stay compliant with employment laws and regulations. It provides plain-language explanations, best practices, and case-based insights to avoid legal pitfalls.
- 4) **Tailored Training:** The platform includes eLearning courses designed for federal employees, covering topics like the No FEAR Act and Federal Manager eTraining. These courses align with OPM's Executive Core Qualifications (ECQs), making them highly relevant for government operations.
- 5) **Efficient Information Access:** With features like Checklists Plus+ and Case Central, CyberFEDS streamlines the process of finding and applying critical information, saving time and improving decision-making.

CyberFEDS meets the diverse and complex needs of the government by offering comprehensive information, efficient tools, and advanced capabilities. Its ability to support legal research specialized in federal employment law and HR resources, risk management, compliance, and decision-making makes it an essential resource for the CWMB operations.

During the market research phase, it was noted that there are additional platforms that can provide the similar components but are limited in key areas in federal employment law and government operations. Below is a comparison of CyberFEDS and its competitors, focusing on their unique features and strengths:

Feature/Platform	CyberFEDS	Westlaw	LexisNexis	Bloomberg Law
Focus	Federal employment law and HR resources	Broad legal research	Broad legal research	Legal and business intelligence
Exclusive Resources	Broida's and Hadley's Guides, Quick Start Guides (QSGs)	Extensive case law and statutes	Comprehensive legal database	Business-focused legal insights
Training	eLearning courses aligned with OPM's ECQs	Limited training options	Limited training options	Limited training options
Compliance Tools	Case Central, Checklists Plus+, real-time updates	General compliance tools	General compliance tools	General compliance tools
Target Audience	Federal agencies, HR professionals	Legal professionals	Legal professionals	Legal and business professionals

In addition to the above characteristics, CyberFEDS offers several specific characteristics that make it a more unique and valuable tool, limiting the availability of comparable alternatives:

- **Exclusive Access to Authoritative Guides:** CyberFEDS is the only platform offering online, fully searchable access to Broida's and Hadley's Guides, which are gold standards in federal employment law.
- **Practical Tools for Federal HR:** Features like Checklists Plus+ provide step-by-step guidance for completing specific tasks efficiently, which is particularly useful for federal HR practitioners.
- **Quick Start Guides (QSGs):** These guides offer concise overviews of over 350 federal employment topics, linking directly to relevant cases, statutes, and regulations. This level of specificity is unmatched.
- **Daily and Weekly Updates:** CyberFEDS delivers targeted updates through newsletters, keeping users informed about the latest trends and changes in federal employment law.
- **Case Central:** This feature lists the latest case files and decisions from authorities like the EEOC, MSPB, and FLRA, ensuring users stay up-to-date with significant rulings.
- **Tailored eLearning Courses:** CyberFEDS offers a library of over 100 training courses, including those aligned with OPM's Executive Core Qualifications (ECQs), making it a comprehensive training resource for federal employees.

Overall, CyberFEDS provides a combination of reliability, specialized capabilities, comprehensive data access, and ongoing support that are crucial for Civilian Workforce Management Branch's operations. Switching to another vendor could disrupt workflows, reduce efficiency, increase costs and training and potentially compromise the quality of information and services that Civilian Workforce Management Branch relies on.

C. IN THE INTEREST OF ECONOMY AND EFFICIENCY, THE NEW WORK IS A LOGICAL FOLLOW-ON TO AN ORIGINAL FEDERAL SUPPLY SCHEDULE ORDER (FAR 8.405-6(a)(1)(i)(C)):

The original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA was **not** issued under sole-source or limited-sources procedures.

D. ITEMS PECULIAR TO ONE MANUFACTURER (FAR 8.405-6(b)):

An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer.

VI. DETERMINATION THAT THE ORDER OR BPA REPRESENTS THE BEST VALUE:

The Contracting Officer has determined that the order or BPA covered by this justification will represent the best value to the Government. Fair and reasonable pricing will be determined in accordance with DoD Class Deviation 2014-O0011 using the proposal analysis techniques at FAR 15.404-1.

VII. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED AMONG SCHEDULE HOLDERS:

A discussion of the market research conducted among schedule holders and the results, or a reason market research was not conducted, is included in Section V, above.

VIII. ACTIONS TAKEN TO REMOVE OR OVERCOME BARRIERS:

For the reasons set forth in Part III, the activity has no plans at this time to take action to eliminate the barriers that led to restricted consideration for the types of supplies/services covered by this justification; however, this will be reassessed during follow-on acquisition planning.

DFARS 208.405-6 and PGI 208.405-6 REQUIREMENTS: The subject order or BPA exceeds the

simplified acquisition threshold and is a follow-on to an order or BPA for the same supply or services previously issued based on a limiting sources justification citing the authority at FAR 8.405-6(a)(1)(i)(B) or (C). In accordance with DFARS 208.405-6 and PGI 208.405-6, this limited sources justification includes a copy of the previous justification.

The approval authority has determined that the planned actions to remove any barriers that led to the restricted consideration cited on the previous justification were completed.